

# HOUSE . . . . . No. 5550

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## The Commonwealth of Massachusetts

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HOUSE OF REPRESENTATIVES, June 30, 2026.

The committee on Ways and Means, to whom was referred the Senate Bill relative to toxic-free medical devices (Senate, No. 3106), reports recommending that the same ought to pass with an amendment striking out all after the enacting clause and inserting in place thereof the text contained in House document numbered 5550.

For the committee,

AARON MICHLEWITZ.

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## The Commonwealth of Massachusetts

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In the One Hundred and Ninety-Fourth General Court  
(2025-2026)  
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By striking out all after the enacting clause and inserting in place thereof the following:—

1           SECTION 1. Chapter 111 of the General Laws is hereby amended by adding the  
2 following section:—

3           Section 250. (a) As used in this section, the following words shall, unless the context  
4 clearly requires otherwise, have the following meanings:

5           “DEHP”, Di(2-ethylhexyl)phthalate.

6           “Intentionally added DEHP”, DEHP that a manufacturer has intentionally added to an  
7 intravenous solution container or intravenous tubing product; provided, however, that the DEHP  
8 shall have a functional or technical effect on the product.

9           “Intravenous solution container”, a container used to hold medicine, fluid or nutrition  
10 therapy that is intravenously delivered to a patient in a hospital, outpatient facility or other health  
11 care facility; provided, however, that an intravenous solution container shall not include: (i)  
12 human blood collection or storage bags; or (ii) apheresis and cell therapy blood kits and bags,  
13 including integral tubing.

“Intravenous tubing product”, tubing for intravenously administering fluids, medication or nutrients directly to an adult, child or infant.

“Ortho-phthalate”, a class of chemicals that are esters of ortho-phthalic acid, including DEHP and: (i) butyl benzyl phthalate; (ii) dibutyl phthalate; (iii) dicyclohexyl phthalate; (iv) diethyl phthalate; (v) diisobutyl phthalate; (vi) diisodecyl phthalate; (vii) diisononyl phthalate; (viii) di-n-hexyl phthalate; (ix) di-n-octyl phthalate; (x) di-n-pentyl phthalate; or (xi) diisooheptyl phthalate.

(b) A person or entity shall not manufacture, sell or contribute into commerce in the commonwealth intravenous solution containers made with intentionally added DEHP; provided, however, that an intravenous solution container may have trace amounts of DEHP if such DEHP is not used for a function or technical effect and is not more than 0.1 per cent weight per weight. A person or entity may not replace DEHP with another ortho-phthalate in a new or revised intravenous solution container.

(c) A person or entity shall not manufacture, sell or contribute into commerce in the commonwealth an intravenous tubing product made with intentionally added DEHP; provided, however, that an intravenous tubing product may have trace amounts of DEHP if it is not used for a functional or technical effect and is not more than 0.1 per cent weight per weight. A person or entity shall not replace DEHP with another ortho-phthalate in a new or revised intravenous tubing product.

SECTION 2. Subsection (b) of section 250 of chapter 111 of the General Laws, inserted by section 1, shall take effect on January 1, 2030.

35           SECTION 3. Subsection (c) of section 250 of chapter 111 of the General Laws, inserted  
36   by section 1, shall take effect on January 1, 2035.